

HOUSE No. 1566

The Commonwealth of Massachusetts

PRESENTED BY:

Priscila S. Sousa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to residential assistance for families in transition (RAFT).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>1/13/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>7/14/2025</i>

HOUSE No. 1566

By Representative Sousa of Framingham, a petition (accompanied by bill, House, No. 1566) of Priscila S. Sousa that the the Department of Housing and Community Development administer residential assistance for families in transition homelessness prevention programs. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1374 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to residential assistance for families in transition (RAFT).

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws, as appearing in the 2018 Official
2 Edition, is hereby amended by inserting after section 30 the following section:-

3 Section 31. (a) Subject to appropriation, the department of housing and community
4 development shall administer residential assistance for families in transition homelessness
5 prevention programs for households whose incomes are at or below area median income and
6 who are at risk of homelessness, eviction, foreclosure or utility shut-off within the next 12
7 months. For the purposes of this program, to receive cash benefits or other services, a household
8 need not be subject to the summary process under chapter 239 nor have received a shut-off
9 notice from a utility company. Risk of eviction, foreclosure and utility shut-off may be
10 determined by certified statements from the landlord, mortgage holder, utility company, or the

11 applicant household verifying outstanding rent, mortgage or utility costs and the household's
12 current inability to pay said fees. The department shall set aside 50 percent of the funds for
13 households with incomes not greater than 30 percent of area median income, but nothing in this
14 section shall be construed so as to create a purpose in delaying awards to higher-income
15 households. Eligible households shall include, but not be limited to, families with children under
16 the age of 21, elders, persons with disabilities, and unaccompanied youth. Services and cash
17 benefits under the program shall be made available to households for the prevention of the loss
18 of subsidized or unsubsidized housing. Cash benefits for arrearages shall not exceed the actual
19 liability, but cash benefits shall not be limited to arrearages. Eligible households may receive
20 benefits for short-term going-forward rental or utility payments to offset future costs, and to pay
21 for other expenses that otherwise would leave the household at risk of homelessness, up to a total
22 benefit equal to 12 months' rent. Lest the program act regressively in areas of opportunity, any
23 budget established subsequent to this Act that establishes a cap on total benefit in dollar amounts
24 shall override the cap established in this section only to the extent that cap is greater than 12
25 months' rent. Any regional administering agency shall be subject to the requirements of Chapter
26 30B. In administering the program, the department shall coordinate with the department of
27 transitional assistance, member agencies and offices of the Massachusetts interagency council on
28 housing and homelessness and the agencies contracted to administer the residential assistance for
29 families in transition program on behalf of eligible households served by those agencies and
30 offices so as streamline the application process, provide additional support services, and better
31 promote upstream homelessness prevention and housing stability.

32 (b) The department shall annually, on or before December 31, issue a report on the rental
33 and mortgage arrearage assistance program created by this section. The report shall be submitted

to the House and Senate Committees on Ways and Means; the Joint Committee on Housing; and the House and Senate Clerks. The report shall include but not be limited to the following information:

(i) the referral source for each household and number of households referred by said source;

(ii) the number of applications requested, the number of applications completed, the number of applications approved;

(iii) the number of applications rejected and the reasons for denial;

(iv) the household income and demographic information for each qualifying household and its members. This information shall be provided by zip code and cumulatively;

(v) the monthly rent or mortgage liability for each qualifying household and the amount of each arrearage payment; and

(vi) the housing status of each qualifying household at six, twelve, and twenty-four months after receipt of services or cash benefits.

SECTION 2. Chapter 66 of the General Laws is hereby amended by inserting after Section 21 the following section:-

Section 22. Documents pertaining to rental assistance. In order to ensure the just, efficient and discrimination-free administration of housing services, a document made by the Department of Housing and Community Development or its agent, whether a Regional Administering Agency or other person or entity, pertaining to rental assistance in any form described under Chapter 23B or Chapter 151B Section 4, shall be considered a public record under this chapter to

55 the extent it identifies the lessor, owner, manager or another recipient of funds, the precise
56 address at which housing services were rendered, and the amount and dates of such assistance,
57 provided however that the names of renters, tenants, subtenants, and other occupants of the
58 premises at the time of such assistance shall not be public records.